

24NWCV02896 24NWCV02896

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-07-16

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Case Number: 24NWCV02896 Hearing Date: July 16, 2026 Dept: L

I.

Defendant's Motion to Compel Plaintiff to

Respond to Form Interrogatories (Set One) is GRANTED.

II.

Defendant's Motion to Compel Plaintiff to

Respond to Special Interrogatories (Set One) is GRANTED.

III.

Defendant's Motion to Compel Plaintiff to

Respond to Requests for Production (Sets One and Two) is GRANTED. Defendant is ordered to pay an additional \$60.00 in filing fees.

IV.

Defendant's Motion to Deem Matters

Admitted and for Genuineness of Documents is GRANTED.

V.

Defendant is awarded \$960.00 in sanctions
in total for all motions.

Defendant to give notice.

This is a habitability action. Defendant

Ehinger & Dunlap Inc. ("Defendant") now move to compel Plaintiff Jeronimo

Qurioz's ("Plaintiff") to respond to 1) Form Interrogatories (Set One), 2)

Special Interrogatories (Set One), 3) Requests for Production (Set One), and 4)

Requests or Production (Set Two). Defendant also moves to deem its Requests for

Admission (Set One), admitted. Defendant requests \$960.00 in sanctions for each Motion.

On January 16, 2026, Defendant served Plaintiff with set one of all discovery requests. (Singer Decls., ¶ 2, Exh. A.) On April 27, 2026, Defendant served Plaintiff with Request for Production (Set Two). (Singer Decl., ¶ 3, Exh. B.) Plaintiff's responses were due within 30 days after service.

Defense counsel attempted to meet and confer regarding these Motions on April 16, 2026, April 17, 2026, and May 7, 2026, but Plaintiff failed to respond to the meet and confer correspondences and failed to provide the discovery responses. (Singer Decls., ¶¶ 3-4.)

On July 7, 2026, Defendant filed Statements of Non-Opposition to all Motions. No oppositions have been filed as of July 15, 2026.

The Court initially notes that the Motion to Compel Plaintiff to Respond to Requests for Production should have been filed as two motions, as it involves two separate sets of discovery requests (Sets One and Two). Multiple motions should not be combined into a single filing, as each motion requires a separate filing fee. (See Govt. Code, § 70617, subd. (a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing]; see also *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460 [finding filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them].)

Defendant is thus ordered to pay an additional \$60.00 in filing fees.

The Court finds that Plaintiff has failed to respond to all discovery requests.

Defendant's Motions to Compel Plaintiff to Respond to the discovery requests are GRANTED. Plaintiff is ordered to provide Code-compliant responses, without objection, to all discovery requests within 20 days of this order.

Defendant's Motion to Deem

Matters Admitted and for Genuineness of Documents is GRANTED. The Requests for Admissions (Set One) are deemed admitted.

Defendant is awarded \$960.00 in

sanctions in total for all motions, considering that the Motions are substantially similar.